

FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01, 16-07, 16-10, and 16-11

IN RE: VEHICLE CARRIER SERVICES

**MOTION OF PROFESSORS SANT'AMBROGIO AND ZIMMERMAN TO
FILE A BRIEF AS AMICI CURIAE IN SUPPORT OF COMPLAINANTS**

Pursuant to Rule 73 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.73, Professors Michael Sant'Ambrogio and Adam Zimmerman respectfully move for permission to file a brief as *amici curiae* in support of Complainants.

Amici are professors at Michigan State University College of Law and Loyola Law School, Los Angeles, who write extensively about the ways that federal agencies aggregate cases and claims.¹ We recently completed a study for the Administrative Conference of the United States—a government body that issues guidance for all federal agencies—surveying a wide range of class action and other aggregate procedures used by agencies in adjudication. Based on our report, the Administrative Conference adopted recommendations for agencies considering aggregate procedures in their own

¹ See, e.g., Michael Sant'Ambrogio & Adam S. Zimmerman, *Inside the Agency Class Action*, 126 Yale L.J. 1634 (2017); Michael Sant'Ambrogio & Adam S. Zimmerman, *The Agency Class Action*, 112 Colum. L. Rev. 1992 (2012). Amici file this in their individual capacity as scholars, and provide institutional affiliation solely for purposes of identification.

administrative proceedings.² The parties and the Administrative Law Judge (ALJ) relied on our earlier work in the cases below, but disagreed about the import of our recommendations and overlooked new developments in administrative aggregate procedure. We have a strong interest in identifying ways that agencies can respond to many claims efficiently, consistently and fairly, and we submit this brief to clarify how and when agencies, like the Federal Maritime Commission, may use aggregate tools to accomplish these goals.

Amici support complainants' position that the Federal Maritime Commission has the power to aggregate claims in appropriate cases. Amici take no position about whether aggregation in this particular case is warranted.

Accordingly, Professors Sant'Ambrogio and Zimmerman respectfully request leave to file the proposed amicus brief attached as Exhibit 1 to this motion. A Proposed Order is also attached as Exhibit 2.

Counsel for respondents oppose our motion to provide the Commission with an amicus brief.

Dated: August 7, 2018

Respectfully Submitted,

By: /s/ Michael Sant'Ambrogio

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² See Administrative Conference Recommendation 2016-2: *Aggregation of Similar Claims in Agency Adjudication* (June 10, 2016).

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th day of August 2018, a true and correct copy of the foregoing MOTION OF PROFESSORS SANT’AMBROGIO AND ZIMMERMAN TO FILE A BRIEF AS AMICI CURIAE IN SUPPORT OF COMPLAINANTS and accompanying exhibits were filed electronically with the Secretary of the Federal Maritime Commission and via first-class mail, and electronic copies thereof were sent to all lead/liaison counsel in the Dockets of Nos. 16-01, 16-07, 16-10, and 16-11.

/s/ Michael Sant’Ambrogio

EXHIBIT 1

IN THE FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01, 16-07, 16-10, and 16-11

In Re Vehicle Carrier Services

**BRIEF OF PROFESSORS SANT'AMBROGIO AND ZIMMERMAN
AS *AMICI CURIAE* IN SUPPORT OF COMPLAINANTS**

TABLE OF CONTENTS

	Page
INTEREST OF AMICI CURIAE.....	1
SUMMARY OF ARGUMENT.....	2
I. CONGRESS GENERALLY GRANTS NON-ARTICLE III COURTS BROAD DISCRETION TO ADOPT THEIR OWN PROCEDURES.	3
II. NON-ARTICLE III COURTS USE THEIR STATUTORY AUTHORITY TO AGGREGATE CLAIMS AND CASES IN A VARIETY OF WAYS.	6
A. Non-Article III courts promulgate rules providing for aggregation.....	6
B. Non-Article III courts aggregate using informal methods.	11
C. Non-Article III courts may aggregate claims consistent with Due Process.	14
III. AGGREGATION IS AN INDISPENSABLE TOOL FOR IMPROVING THE EFFICIENCY, CONSISTENCY, AND FAIRNESS OF ADJUDICATION.	16
A. Aggregation can resolve group-wide harms more efficiently than can individual lawsuits.	17
B. Aggregation enables more consistent applications of law.....	19
C. Aggregation can facilitate access to justice.	20
CONCLUSION.....	22

TABLE OF AUTHORITIES

Page

CASES AND DECISIONS

<i>Ahern v. Sec’y of the Dep’t of Health and Human Servs.</i> , No. 90-1435V, 1993 WL 179430 (Fed. Cl. Spec. Mstr. Jan. 11, 1993)	22
<i>Amchem Prods. v. Windsor</i> , 521 U.S. 591 (1997)	15
<i>Am. Ins. Co. v. 356 Bales of Cotton</i> , 26 U.S. (1 Pet.) 511 (1828)	3
<i>Amgen Inc. v. Connecticut Ret. Plans & Trust Funds</i> , 133 S. Ct. 1184 (2013).....	17
<i>AT&T Mobility LLC v. Concepcion</i> , 563 U.S. 333 (2011)	20
<i>Barrett v. U.S. Civil Service Comm’n</i> , 69 F.R.D. 544 (D.D.C. 1974)	19
<i>Bend v. Sebelius</i> , No. 09-3250, 2010 WL 4852230 (C.D. Cal. Nov. 19, 2010)	16
<i>Bi-Metallic Inv. Co. v. State Bd. of Equalization</i> , 239 U.S. 441 (1915)	15
<i>Butler v. Sears, Roebuck & Co.</i> , 727 F.3d 796 (7th Cir. 2013)	16
<i>Cedillo v. Sec’y of Health & Human Servs.</i> , No. 98-916V, 2009 WL 331968 (Fed. Cl. Feb. 12, 2009), <i>aff’d</i> , 89 Fed. Cl. 158 (2009), <i>aff’d</i> , 617 F.3d 1328 (Fed. Cir. 2010)	12, 17, 22
<i>Chaves County Home Health Servs. v. Sullivan</i> , 931 F.2d 914 (D.C. Cir. 1991).....	13, 16
<i>Commodity Futures Trading Comm’n v. Schor</i> , 478 U.S. 833 (1985)	4
<i>FCC v. Pottsville Broad. Co.</i> , 309 U.S. 134 (1940)	5, 9, 11
<i>FCC v. Schreiber</i> , 381 U.S. 279, 289 (1965).....	11
<i>Federal Maritime Comm’n v. South Carolina Port Authority</i> , 535 U.S. 743 (2002).....	5
<i>Georgia ex rel. Dept. of Hum. Res. v. Califano</i> , 446 F. Supp. 404 (N.D. Ga. 1977)	16
<i>Goldberg v. Kelly</i> , 397 U.S. 254 (1970)	5
<i>Harrison v. Derwinski</i> , 1 Vet.App. 438 (1991).....	10
<i>Heckler v. Campbell</i> , 461 U.S. 458 (1983).....	15, 19, 20
<i>Ill. Physicians Union v. Miller</i> , 675 F.2d 151, 157 (7th Cir. 1982).....	16
<i>In re Apogee Health Serv., Inc.</i> , No. 769 (Medicare Appeals Council Mar. 15, 1999).....	12
<i>In re S & G Fin. Servs. of S. Florida, Inc.</i> , 451 B.R. 573 (Bankr. 42 S.D. Fla. 2011)	11
<i>In re: Vehicle Carrier Services</i> , Docket Nos. 16-01 et al. (FMC, May 7, 2018)	10

TABLE OF AUTHORITIES (continued)

PAGE

<i>In re Whirlpool Corp. Front-Loading Washer Products Liab. Litig.</i> , 722 F.3d 838 (6th Cir. 2013)	17
<i>In the Matter of Petition of Solvable Frustrations, Inc. to Amend Part 1 of the Commission’s Rules to Specify Procedures for Class Action Complaints</i> , 29 F.C.C. Rcd. 4205 (2014)	9
<i>Kominers v. United States</i> , 3 Cl. Ct. 684 (1983)	12
<i>LaChapelle v. Owens-Illinois, Inc.</i> , 513 F.2d 286 (5th Cir. 1975)	11
<i>Londoner v. Denver</i> , 210 U.S. 373 (1908)	15
<i>Marshall Associated Contractors, Inc. v. United States</i> , 31 Fed. Cl. 809 (1994)	11
<i>Monk v. Shulkin</i> , 855 F.3d 1312 (Fed. Cir. 2017)	5, 10, 14
<i>Moore v. United States</i> , 41 Fed. Cl. 394 (1998)	12
<i>Mullane v. Central Hanover Bank & Trust Co.</i> , 339 U.S. 306 (1950)	14
<i>Phillips Petroleum Co. v. Shutts</i> , 472 U.S. 797 (1985)	14, 21
<i>Quinault Allottee Ass’n & Individual Allottees v. United States</i> , 453 F.2d 1272 (Ct. Cl. 1972)	8, 12
<i>Ratanasen v. Cal. Dep’t of Health Servs.</i> , 11 F.3d 1467 (9th Cir. 1993)	16
<i>Shady Grove Orthopedic Assocs., P.A. v. Allstate Ins. Co.</i> , 559 U.S. 393 (2010)	8
<i>Snyder ex rel. Snyder v. Sec’y of Dep’t of Health & Human Servs.</i> , No. 01-162V, 2009 WL 332044 (Fed. Cl. Feb. 12, 2009)	12
<i>Taylor v. United States</i> , 41 Fed. Cl. 440 (1998)	12
<i>United States ex rel. Sero v. Preiser</i> , 506 F.2d 1115 (2d Cir. 1974)	11
<i>United States v. Storer Broadcasting Co.</i> , 351 U.S. 192 (1956)	19
<i>Van Harken v. City of Chicago</i> , 103 F. 3d 1346 (7th Cir. 1997)	5
<i>Vermont Yankee Nuclear Power Corp. v. Natural Resources Defense Council, Inc.</i> , 435 U.S. 519 (1978)	6
<i>Wade v. Donahoe</i> , No. 11-3795, 2012 WL 3844380 (E.D. Pa. Sept. 4, 2012)	7

CONSTITUTION AND STATUTES

U.S. Const. Art. I, § 8	3
-------------------------------	---

TABLE OF AUTHORITIES (continued)

	PAGE
7 U.S.C. § 12a	3, 4
26 U.S.C. § 7441	3
26 U.S.C. § 7453	4
28 U.S.C. § 151	3
28 U.S.C. §§ 2071-72	4
42 U.S.C. § 405(a)	4
42 U.S.C. § 2000e-16(b)	3, 4, 7
46 U.S.C § 305	5

RULES AND REGULATIONS

4 C.F.R. § 28.97	7
12 C.F.R. § 1081.204	7
16 C.F.R. § 1025.18	7
28 C.F.R. § 68.16	7
29 C.F.R. § 1614.204	7
42 C.F.R. § 426.410	7
44 Fed. Reg. 42,657	7
46 C.F.R. § 502.12	14
46 C.F.R. § 502.74	6
57 Fed. Reg. 12,634	7, 19
59 Fed. Reg. 9631	9
60 Fed. Reg. 7678, <i>revised</i> 62 Fed. Reg. 7685	22
64 Fed. Reg. 37,644	7, 21
80 Fed. Reg. 78,163	19
81 Fed. Reg. 40,260	13, 20
81 Fed. Reg. 75,926	9
82 Fed. Reg. 27,621	9
83 Fed. Reg. 37,242	9

TABLE OF AUTHORITIES (continued)

	PAGE
Fed. R. Bankr. P. 7023	7
Fed. R. Civ. P. 23	<i>passim</i>

OTHER AUTHORITIES

Administrative Conference Recommendation 2016-2: <i>Aggregation of Similar Claims in Agency Adjudication</i> (June 10, 2016)	1, 13
Advisory Committee on Civil Rules, 95-96 (2016)	13
Am. Bar Ass’n, <i>Section on Administrative Law and Regulatory Practice</i> , Report to the House of Delegates (2003)	17
American Law Institute, <i>Principles of the Law of Aggregate Litig.</i> (2010)	11, 20
<i>Arbitration Study: Report to Congress</i> , Pursuant to Dodd-Frank Wall Street and Consumer Protection Act § 1028(a), Consumer Fin. Protection Bureau (2015)	20
Howard M. Erichson, <i>Informal Aggregation: Procedural and Ethical Implications of Coordination Among Counsel in Related Lawsuits</i> , 50 Duke L.J. 381 (2000)	11
Judith Resnik, “ <i>Uncle Sam Modernizes His Justice</i> ”: <i>Inventing the Federal District Courts of the Twentieth Century for the District of Columbia and the Nation</i> , 90 Geo. L.J. 607 (2002)	3
Judith Resnik, <i>Diffusing Disputes: The Public in the Private of Arbitration, the Private in the Courts, and the Erasure of Rights</i> , 124 Yale L.J. 2804 (2015)	21
Judith Resnik, Dennis E. Curtis & Deborah R. Hensler, <i>Individuals Within the Aggregate: Relationships, Representation, and Fees</i> , 71 N.Y.U. L. Rev. 296 (1996)	21
Judith Resnik, <i>From “Cases” to “Litigation,”</i> 54 Law & Contemp. Probs. 5 (1991)	11
See Michael Sant’ Ambrogio & Adam Zimmerman, Final Report: Aggregate Agency Adjudication, 31 (June 9, 2016)	1, 10
Michael D. Sant’ Ambrogio & Adam S. Zimmerman, <i>The Agency Class Action</i> , 112 Colum. L. Rev. 1992 (2012)	<i>passim</i>

TABLE OF AUTHORITIES (continued)

PAGE

Michael Sant’Ambrogio & Adam S. Zimmerman, <i>Inside the Agency Class Action</i> , 126 Yale L.J. 1634 (2017).....	1, 6, 13, 20
Office of Legal Counsel, Legality of EEOC Class Action Regulations, Memorandum Opinion for the Vice President and the General Counsel of the United States Postal Service (Sept. 20, 2004)	7,8
Press Release, <i>U.S. Equal Employment Opportunity Commission Affirms Class Action to Open State Department to Disabled Foreign Service Officers</i> , MarketWatch, June 14, 2014	22
S. Rep. No. 111-265 (2009)	17
Senate Report on Multidistrict Litigation, S. Rep. No. 90-454 (1967).....	13
U.S. Dep’t Of Health & Human Servs., <i>Settlement Conference Facilitation Pilot</i> , HHS.GOV	18
U.S. Dep’t of Health & Human Servs., <i>Statistical Sampling Initiative</i> , HHS.GOV	18
William B. Rubenstein, <i>Procedure and Society: An Essay for Steven Yeazell</i> , 61 UCLA L. Rev. Discourse 136 (2013)	5
William B. Rubenstein, <i>Newberg on Class Actions</i> (5th ed. 2015).....	17, 19
Adam S. Zimmerman, <i>The Veteran’s Class Action</i> , American Bar Ass’n: Administrative and Regulatory News (Spring 2018)	13

INTEREST OF AMICI CURIAE¹

Amici are professors at Michigan State University College of Law and Loyola Law School, Los Angeles, who write extensively about the ways that federal agencies aggregate cases and claims.² We recently completed a study for the Administrative Conference of the United States—a government body that issues guidance for all federal agencies—surveying a wide range of class action and other aggregate procedures used by agencies in adjudication. Based on our report, the Administrative Conference adopted recommendations for agencies considering aggregate procedures in their own administrative proceedings.³ The parties and the Administrative Law Judge (ALJ) relied on our earlier work in the cases below, but disagreed about the import of our recommendations and overlooked new developments in administrative aggregate procedure. We have a strong interest in identifying ways that agencies can respond to many claims efficiently, consistently and fairly, and we submit this brief to clarify how and when agencies, like the Federal Maritime Commission, may use aggregate tools to accomplish these goals.

Amici support complainants' position that the Federal Maritime Commission has the power to aggregate claims in appropriate cases. Amici take no position about whether aggregation in this particular case is warranted.

¹ No counsel for a party authored this brief in whole or in part. No person other than amicus curiae or their counsel made a monetary contribution intended to fund the preparation or submission of this brief.

² See, e.g., Michael Sant'Ambrogio & Adam S. Zimmerman, *Inside the Agency Class Action*, 126 Yale L.J. 1634 (2017); Michael Sant'Ambrogio & Adam Zimmerman, Final Report: Aggregate Agency Adjudication, 31 (June 9, 2016); Michael Sant'Ambrogio & Adam S. Zimmerman, *The Agency Class Action*, 112 Colum. L. Rev. 1992 (2012).

³ See Administrative Conference Recommendation 2016-2: *Aggregation of Similar Claims in Agency Adjudication* (June 10, 2016).

SUMMARY OF ARGUMENT

Amici submit this brief to explain the use of aggregate procedures in non-Article III courts. “Non-article III courts” include both administrative tribunals and legislative courts whose judges lack the tenure and salary protections of Article III of the Constitution. As we show, a wide variety of non-Article III courts have concluded that they can, and should, in appropriate circumstances, aggregate claims under statutory authority that closely resembles the authority Congress has provided to the Federal Maritime Commission. Amici thus make three points in support of complainants’ position that the Commission may use either class actions or other informal procedures to aggregate cases.

First, Congress generally grants non-Article III courts broad discretion to craft procedures they deem necessary and appropriate to adjudicate the cases and claims that come before them. Non-Article III courts’ power to develop procedural rules reflects an appropriate and effective division of labor between Congress and administrative tribunals. While Congress creates and defines the jurisdiction of agencies, agencies apply their expertise to determine the procedures best-suited to exercise that jurisdiction.

Second, relying on that authority, non-Article III courts employ a wide range of procedures to aggregate cases formally and informally. For example, non-Article III courts have adopted rules that permit joinder, consolidation, and class actions. And even in the absence of a specific rule, non-Article III courts have aggregated particular cases and claims on a case-by-case basis. Aggregating claims on a case-by-case basis may be particularly important to quickly resolve pending claims, while offering tribunals insights that will aid in developing more formal rules in the future.

Third, non-Article III courts use aggregation to promote efficiency, consistency, and fairness. Aggregation enables courts to pool information about common and recurring problems

efficiently, fosters more consistent outcomes in similar cases than is possible through case-by-case adjudications, and improves access to legal and expert assistance for parties who have limited resources and whose claims may appropriately be pursued through collective mechanisms.

ARGUMENT

I. CONGRESS GENERALLY GRANTS NON-ARTICLE III COURTS BROAD DISCRETION TO ADOPT THEIR OWN PROCEDURES.

The Supreme Court has long recognized that Congress may create courts in which judges do not receive the salary and tenure protections required by Article III of the Constitution. *Am. Ins. Co. v. 356 Bales of Cotton*, 26 U.S. (1 Pet.) 511 (1828). When Congress creates such “non-Article III courts,” it usually employs one of its enumerated powers in Article I, in combination with the “necessary-and-proper” clause. U.S. Const. Art. I, § 8.⁴

When Congress creates non-Article III courts and tribunals, it both defines their jurisdiction and grants them the power to prescribe rules of practice and procedure to carry out their statutory mandates. Under such grants of authority, non-Article III tribunals enjoy substantial discretion to develop their own procedures. *See, e.g.*, 7 U.S.C. § 12a (authorizing the Commodity Futures Trading Commission (CFTC) “to make and promulgate such rules and regulations as, in the judgment of the Commission, are reasonably necessary to effectuate any of the provisions or to accomplish any of the purposes of” the Commodity Exchange Act); 42

⁴ Some non-Article III judges, like bankruptcy and magistrate judges, are appointed by Article III judges and work inside the Article III branch. *See, e.g.*, 28 U.S.C. § 151 *et seq.*; § 631 *et seq.* *See generally*, Judith Resnik, “Uncle Sam Modernizes His Justice”: *Inventing the Federal District Courts of the Twentieth Century for the District of Columbia and the Nation*, 90 Geo. L.J. 607 (2002). Other non-Article III adjudicators work outside Article III, in bodies sometimes termed “legislative courts” and in administrative agencies. *See, e.g.*, 26 U.S.C. § 7441 *et seq.* (establishing the United States Tax Court as a stand-alone court); 29 U.S.C. §§ 153 & 160 (establishing the National Labor Relations Board as an independent regulatory agency and granting it authority, *inter alia*, to hear complaints regarding unfair labor practices).

U.S.C. § 405(a) (“The Commissioner of Social Security shall have full power and authority to make rules and regulations and to establish procedures, not inconsistent with the provisions of this title, which are necessary or appropriate to carry out such provisions....”); 42 U.S.C. § 2000e-16(b) (empowering the EEOC to “issue such rules, regulations, orders and instructions as it deems necessary and appropriate to carry out its responsibilities” with respect to federal employees).

For example, in *Commodity Futures Trading Comm’n v. Schor*, 478 U.S. 833 (1985), the Supreme Court rejected the lower court’s conclusion that the CFTC lacked the power to join counterclaims. *Id.* at 842. The Supreme Court based its holding, in part, on the “the sweeping authority Congress delegated to the CFTC.” *Id.* at 842. In particular, the Supreme Court relied on statutory language that permits the CFTC to “make and promulgate such rules and regulations as, in the judgment of the Commission, are reasonably necessary” to accomplish the purposes of the statute authorizing its existence. *Id.* (citing 7 U.S.C. § 12a).

In some cases, non-Article III courts enjoy *more* power to develop procedural rules than Article III courts. Most non-Article III courts are not limited by the Rules Enabling Act, which says that Article III courts may only “prescribe general rules of practice and procedure” that do not “abridge, enlarge or modify any substantive right.” 28 U.S.C. §§ 2071-72. By contrast, many non-Article III courts have no such limitation. For example, under its statutory authority, the Tax Court may adopt any procedural rule “as the Tax Court may prescribe,” so long as it conducts its proceedings in accordance with the rules of evidence for bench trials in the United States District Courts for the District of Columbia. 26 U.S.C. § 7453. The EEOC may issue any rules it deems “necessary and appropriate to carry out its responsibilities” with respect to federal employees. 42 U.S.C. § 2000e-16(b).

Indeed, since 1940, the Supreme Court has explained that non-Article III tribunals “should be free to fashion their own rules of procedure and to pursue methods of inquiry capable of permitting them to discharge their multitudinous duties.” *FCC v. Pottsville Broad. Co.*, 309 U.S. 134, 143 (1940). For that reason, non-Article III courts may consolidate cases and decide “subordinate questions of procedure,” such as “the scope of the inquiry, whether [cases] should be heard contemporaneously or successively, whether parties should be allowed to intervene in one another’s proceedings, and similar questions.” *Id.* at 138.

The Federal Maritime Commission’s Rules of Practice and Procedure “bear a remarkably strong resemblance to civil litigation in federal courts.” *Federal Maritime Comm’n v. South Carolina Port Authority*, 535 U.S. 743, 757 (2002). That is because, when authorizing the Federal Maritime Commission, Congress granted the FMC broad power to conduct hearings and prescribe rules “to carry out its duties and powers.” 46 U.S.C § 305. That statutory grant is comparable to the authority given to the CFTC, the EEOC, and the other non-Article III courts described above, all of which have appropriately used their authority to design their own procedures. *Monk v. Shulkin*, 855 F.3d 1312, 1320 (Fed. Cir. 2017) (observing that the Court of Appeals for Veteran’s Claims enjoys authority to aggregate cases under broadly worded authority that resembles other non-Article III courts).

Congress’s decision to vest courts and tribunals with procedural flexibility reflects a basic feature of American procedure: adjudicative bodies need power to shape their own rules and, when appropriate, to adapt rules to respond to the issues that come before them.⁵ *Pottsville*

⁵ See William B. Rubenstein, *Procedure and Society: An Essay for Steven Yeazell*, 61 UCLA L. Rev. Discourse 136, 141 (2013) (“[L]itigation is properly structured when its shape is the same as the shape of the underlying societal events.”); *Goldberg v. Kelly*, 397 U.S. 254, 268-69 (1970) (“The opportunity to be heard must be tailored to the capacities and circumstances of those who are to be heard.”); *Van Harken v. City of Chicago*, 103 F. 3d 1346, 1351 (7th Cir. 1997) (“The

Broad. Co., 309 U.S. at 143; *see also Vermont Yankee Nuclear Power Corp. v. Natural Resources Defense Council, Inc.*, 435 U.S. 519, 524 (1978) (“[T]his Court has for more than four decades emphasized that the formulation of procedures [is] basically to be left within the discretion of the agencies.”).

II. NON-ARTICLE III COURTS USE THEIR STATUTORY AUTHORITY TO AGGREGATE CLAIMS AND CASES IN A VARIETY OF WAYS.

The Federal Maritime Commission’s statute, which gives it the power to make new rules, encompasses a wide range of procedures, including the power to aggregate cases and claims. Non-Article III tribunals may (a) enact formal rules to join, consolidate or certify class actions (b) aggregate even without formal rules to do so, and (c) aggregate cases consistent with Due Process.

A. Non-Article III courts promulgate rules providing for aggregation.

Relying on general grants of authority to adopt their own procedures, over 70 non-Article III tribunals have adopted procedures to aggregate claims. *See* Michael Sant’Ambrogio & Adam S. Zimmerman, *Inside the Agency Class Action*, 126 Yale L.J. 1634 (2017) (appendix listing aggregation procedures for federal agencies). Indeed, the Federal Maritime Commission itself has promulgated a rule allowing it to consolidate “proceedings which involve substantially the same issues.” 46 C.F.R. § 502.74. Using the same authority, nine non-Article III tribunals have also adopted class action rules of some kind. *Id.* at 1659. Some rules loosely track Rule 23 of the Federal Rules of Civil Procedure, while others are tailored to the specific types of cases and

due process clause is not a straitjacket, preventing ... governments from experimenting with more efficient methods of delivering governmental services....”).

claims that the court or agency hears.⁶ Examples include the Bankruptcy Courts, the Equal Employment Opportunity Commission (EEOC), the Merit Systems Protection Board (MSPB), the Consumer Product Safety Commission (CPSC), and the Personnel Appeals Board. *See* Fed. R. Bankr. P. 7023 (providing that Federal Rule of Civil Procedure 23 applies in adversary proceedings in the Bankruptcy Courts); 29 C.F.R. § 1614.204 (permitting the EEOC to hear class action claims involving federal employees); 16 C.F.R. § 1025.18 (providing for the CPSC to pursue violations as a class action); 4 C.F.R. § 28.97 (providing employees power to pursue class action with Personnel Appeals Board).

The EEOC's experience is illustrative. Congress vested the EEOC with the power to hear discrimination claims brought by federal employees and "to issue such rules, regulations, orders and instructions as it deems necessary and appropriate to carry out its responsibilities under this section." 42 U.S.C. § 2000e-16(b). Relying on that language, in 1992, the EEOC adopted a class action procedure. *See* 57 Fed. Reg. 12,634 (Apr. 10, 1992); 64 Fed. Reg. 37,644 (July 12, 1999); *Wade v. Donahoe*, No. CIV.A. 11-3795, 2012 WL 3844380, at *13 (E.D. Pa. Sept. 4, 2012) ("Pursuant to [its 42 U.S.C. § 2000e-16(b)] authority, the EEOC has promulgated regulations for class actions.").

⁶ For a sampling of such procedures adopted across the administrative state, *see, e.g.*, 29 C.F.R. § 102.33 (permitting the General Counsel of the National Labor Relations Board (NLRB) to consolidate any proceedings instituted in the same region under section 10(a)-(i) of the Act for the Prevention of Unfair Labor Practices where he "deems it necessary in order to effectuate the purposes of the Act."); 12 C.F.R. § 1081.204 (permitting the Consumer Financial Protection Bureau (CFPB) to consolidate adjudicatory proceedings "for some or all purposes" where there is a material common question of law or fact); 42 C.F.R. § 426.410 (permitting the Department of Health & Human Services to consolidate complaints relating to Medicare Local Coverage Determinations where there is a common question of law or fact); 28 C.F.R. § 68.16 (permitting the Department of Justice to consolidate where the evidence and matters at issue are "substantially similar" in hearings to be conducted regarding allegations of unlawful immigration-related employment practices, and document fraud.).

In 2004, the Postal Service challenged that rule. The Office of Legal Counsel (OLC) for the United States Department of Justice rejected that challenge and confirmed the EEOC's broad authority to use class actions to aggregate claims.⁷ Observing that class actions were "procedural in nature," the OLC concluded that the EEOC could properly adopt class action rules under its congressional directive to issue "such rules ... as it deems necessary and appropriate to carry out its responsibilities."⁸

Indeed, just as class actions fall "within the Supreme Court's mandate to adopt rules of 'practice and procedure' for the district courts, ... [t]here is no reason why [other Non-Article III courts] cannot use the same device, if it is appropriate." *Quinault Allottee Ass'n & Individual Allottees v. United States*, 453 F.2d 1272, 1274 (Ct. Cl. 1972) (holding the Court of Claims may certify class actions in appropriate cases). A part of the explanation stems from the function of class actions, which are "procedural technique[s] for resolving the claims of many individuals at one time ..., comparable to joinder of multiple parties and intervention." *Id.*; accord *Shady Grove Orthopedic Assocs., P.A. v. Allstate Ins. Co.*, 559 U.S. 393, 408 (2010) ("Rule 23 ... falls within § 2072(b)'s authorization. A class action, no less than traditional joinder (of which it is a species), merely enables a federal court to adjudicate claims of multiple parties at once, instead of in separate suits.").

To be sure, there have been some cases where non-Article III courts *chose* not to adopt class action rules. In all but one of those cases, however, there was no question about whether those courts had the *authority* to adopt class action rules if they had wished to do so. In 1992,

⁷ When two or more Executive agencies cannot resolve a dispute between themselves, OLC may resolve the dispute. Exec. Order No. 12,146, 44 Fed. Reg. 42,657 (1979).

⁸ Office of Legal Counsel, Legality of EEOC Class Action Regulations, Memorandum Opinion for the Vice President and the General Counsel of the United States Postal Service 254 & 261 n.3 (Noel J. Francisco, Dept. Ass. Atty. Gen.) (Sept. 20, 2004), *available at* <http://www.justice.gov/sites/default/files/olc/opinions/2004/09/31/op-olc-v028-p0254.pdf>.

after Congress directed the CFTC to study the use of class actions in its own proceedings, the CFTC decided not to adopt a class action rule based largely on the availability of class action reparation claims in federal court. *Rules Relating to Reparation Proceedings*, 59 Fed. Reg. 9631 (Mar. 1, 1994). In 2014, the Federal Communication Commission, which has only one full-time judge, similarly rejected a proposal to hear class actions, reasoning that “such suits may be brought in federal court.” *In the Matter of Petition of Solvable Frustrations, Inc. to Amend Part I of the Commission’s Rules to Specify Procedures for Class Action Complaints*, 29 F.C.C. Rcd. 4205 (2014). In so doing, the FCC declined the invitation by commentators to say it lacked authority to hear class actions. *Id.*

Finally, in November 2016, the Department of Education adopted a “group process” to resolve student claims for debt relief against schools, with provisions loosely modeled after Rule 23 of the Federal Rules of Civil Procedure. *See* Student Assistance General Provisions, Federal Perkins Loan Program, Federal Family Education Loan Program, William D. Ford Federal Direct Loan Program, and Teacher Education Assistance for College and Higher Education Grant Program, 81 Fed. Reg. 75,926 (Nov. 1, 2016) (hereinafter “Student Assistance General Provisions”). The Department rejected arguments that it lacked power to aggregate claims under the Higher Education Act, which refers to borrowers in the singular, pointing to the broad authority agencies traditionally have to develop rules to hear claims “contemporaneously as a group or successively.” *Id.* at 75,965 (citing *Pottsville Broad. Co.*, 309 U.S. at 138). Two weeks before the rules were to take effect in June 2017, the Department under a new administration, suspended this procedure, without explanation.⁹

⁹ Final rule; notification of partial delay of effective dates, 82 Fed. Reg. 27,621 (June 16, 2017). On July 25, 2018, the Department explained that it may, “at its discretion, determine it is more efficient to establish facts regarding claims of misrepresentation put forth by a group of

The only Non-Article III court to conclude it lacked authority to hear class actions, the Court of Appeals for Veterans Claims (CAVC), was recently reversed by the Federal Circuit. Shortly after it was created in 1988, the CAVC had concluded that, as an appellate court with limited jurisdiction, it was not authorized to hear class claims. *Harrison v. Derwinski*, 1 Vet.App. 438 (1991). In 2017, the Federal Circuit disagreed, observing that the CAVC’s enabling statute, which broadly permitted the court to prescribe “rules of procedure,” closely resembled the language of the EEOC and other bodies that had adopted class action rules. On “the basis of the express statutory authority of the Veterans Court to prescribe ‘rules of practice and procedure,’” the Federal Circuit concluded, “the Veterans Court may prescribe procedures for class actions or other methods of aggregation.” *Monk v. Shulkin*, 855 F.3d 1312, 1320 (Fed. Cir. 2017).¹⁰

The Federal Maritime Commission similarly enjoys broad statutory authority to aggregates cases and claims using Rule 23 of the Federal Rules or other informal methods of aggregation.¹¹

borrowers.” See Notice of Proposed Rulemaking, Student Assistance General Provisions, Federal Perkins Loan Program, Federal Family Education Loan Program, and William D. Ford Federal Direct Loan Program, 83 Fed. Reg. 37,242, 37,263-64 (July 25, 2018), *available at* <https://www2.ed.gov/policy/highered/reg/hearulemaking/2017/borrowerdefense.html>. But the Department decided to abandon a formal aggregation procedure because, under its new rules, it would have to assess whether each “individual borrower was harmed by the [school’s] misrepresentation.” *Id.*

¹⁰ In the decision below, the Administrative Law Judge, relying on our 2016 report, observes that some non-Article III courts rejected the use of class actions because they determined they “lack ... authority ... to do so.” *In re: Vehicle Carrier Services*, Docket Nos. 16-01 et al., slip op. at 24 (FMC, May 7, 2018) (citing Michael Sant’Ambrogio & Adam Zimmerman, Final Report: Aggregate Agency Adjudication 31 (June 9, 2016)). Following the Federal Circuit’s 2017 decision in *Monk*, however, we are unaware of any non-Article III court that has said it lacks power to aggregate claims under its organic statute.

¹¹ The opinion below suggests that the Shipping Act’s requirement that “complainants seeking reparations must directly suffer an injury” prevented the Commission from “award[ing] reparations to members of a class who are not complainants and ... [from] issu[ing] a decision

B. Non-Article III courts aggregate using informal methods.

Like Article III courts, which aggregate with different levels of formality,¹² many non-Article III courts also aggregate claims and cases without adopting a formal procedure to do so.¹³ Courts have long aggregated cases in the absence of a formal rule. *United States ex rel. Sero v. Preiser*, 506 F.2d 1115, 1125–26 (2d Cir. 1974) (courts may aggregate cases through “appropriate modes of procedure, by analogy to existing rules or otherwise in conformity with judicial usage.”) And administrative tribunals may tailor ad hoc rules to specific cases as needed. *FCC v. Schreiber*, 381 U.S. 279, 289 (1965).

Proceeding on a case-by-case basis may be particularly important to quickly resolve pending claims, while offering the court insights that will aid in developing more formal rules in the future. For example, the U.S. Court of Federal Claims experimented with class actions for years before promulgating its own formal rule. The Court reasoned that “the better road to

that is binding on those similarly situated non-parties.” *Id.* at 37 & 38. But any statutory injury requirement would merely apply to members of the class in the same way it would apply to the named complainants. Although the Shipping Act defines the elements of a statutory claim, it does not limit the process Commission observes when complainants assert such a claim. *Compare Pottsville Broad. Co.*, 309 U.S. 134, 143 (1940) (agencies may consolidate cases and decide “subordinate questions of procedure,” such as “whether [cases] should be heard contemporaneously or successively) with *LaChapelle v. Owens-Illinois, Inc.*, 513 F.2d 286, 289 (5th Cir. 1975) (Rule 23 opt out class action not available when Congress prescribes different procedures for the underlying action). For that reason, other agencies have rejected similar arguments that a reference to an individual party in a statute prevents agency adjudicators from using aggregate procedures to remedy many similar claims. *See, e.g.* Student Assistance General Provisions, 81 Fed. Reg. at 75,965 (citing *Pottsville Broad. Co.*, 309 U.S. at 138).

¹² *See Principles of the Law of Aggregate Litig.*, §§ 1.02 (2010) (describing informal aggregation); Howard M. Erichson, *Informal Aggregation: Procedural and Ethical Implications of Coordination Among Counsel in Related Lawsuits*, 50 Duke L.J. 381, 386-401 (2000); Judith Resnik, *From “Cases” to “Litigation,”* 54 Law & Contemp. Probs. 5 (1991).

¹³ *See, e.g., In re S & G Fin. Servs. of S. Florida, Inc.*, 451 B.R. 573, 582 (Bankr. 42 S.D. Fla. 2011) (“[I]t is well within this Court’s equitable powers to allow substantive consolidation of entities under appropriate circumstances, whether or not all of those entities are debtors in bankruptcy.”); *Marshall Associated Contractors, Inc. v. United States*, 31 Fed. Cl. 809, 816 (1994) (holding that the court “may either consolidate suits within the court or transfer suits to the appropriate agency board”).

follow” was to hear class actions on a “case-by-case basis, gaining and evaluating experience as we study and decide the class-suit issues presented by individual, concrete cases coming up for resolution.” *Quinault Allottee Ass’n*, 453 F.2d at 1276. The Court followed this approach until it was “clearer as to the shape of the class-suit needs in this court and the functioning of various class-suit devices.” *Id.*¹⁴

Another non-Article III tribunal that has benefited from informal aggregation is the Vaccine Court, which relies on its general authority to “determine the format for taking evidence[,] ... hearing argument[,]” and to “apply [its] expertise” from one case to another. *Snyder ex rel. Snyder v. Sec’y of Dep’t of Health & Human Servs.*, No. 01-162V, 2009 WL 332044, at *2 (Fed. Cl. Feb. 12, 2009). Thus, when faced with large numbers of claims for compensation, the Vaccine Court developed “omnibus proceedings” to efficiently process claims involving the same alleged injury. *Cedillo v. Sec’y of Health & Human Servs.*, No. 98-916V, 2009 WL 331968 at *11 (Fed. Cl. Feb. 12, 2009), *aff’d*, 89 Fed. Cl. 158 (2009), *aff’d*, 617 F.3d 1328 (Fed. Cir. 2010). In an “omnibus proceeding,” a single special master hears evidence and makes a decision on a theory of general causation. *Id.* at *12. The “general causation” evidence is then available for application in individual cases. *Id.* Such “omnibus proceedings,” which work much like issue class actions in federal court, also have provided useful lessons for future rulemaking. Sant’Ambrogio & Zimmerman, *Inside the Agency Class Action*, *supra* at 1672-73.

¹⁴ Ten years after *Quinault*, in 1982, the Court adopted Rule 23 of the U.S. Claims Court, a rule “substantially similar in pertinent respects to Fed. R. Civ. P. 23,” except for the opt-in requirement. *Kominers v. United States*, 3 Cl. Ct. 684, 685–86 (1983). In 2002, the Court revised its class action rule. Despite revisions over the years, the Court consistently returned to the *Quinault* criteria in certifying classes. *See, e.g., Moore v. United States*, 41 Fed. Cl. 394, 400 (1998) (certifying class of landowners whose property was burdened by recreational trail); *Taylor v. United States*, 41 Fed. Cl. 440, 448 (1998) (certifying class of employees who did not receive pay as mandated under Separation Pay Act).

Another example comes from the Office of Medicare Hearings and Appeals (OMHA). OMHA has long aggregated similar appeals brought by health care providers against the federal government. *See In re Apogee Health Serv., Inc.*, No. 769 (Medicare Appeals Council Mar. 15, 1999); *Chaves County Home Health Servs. v. Sullivan*, 931 F.2d 914, 919-22 (D.C. Cir. 1991). Its judges identify, process, consolidate and sometimes sample large numbers of similar cases. OMHA continues to experiment with aggregation techniques, piloting group mediation and statistical trial programs, to resolve large backlogs of claims, while improving case-management. Sant’Ambrogio & Zimmerman, *Inside the Agency Class Action*, at 1676-81.

Informal aggregation thus permits courts to develop general guidelines for aggregation, and over time, to use rulemaking to tailor those rules to their experience. For these reasons, advisory bodies recognize the value of incrementally adopting aggregate procedures. *See* Advisory Committee on Civil Rules, 95-96 (2016) (upon completion of five-year study of class actions in federal courts, recommendations rely on best practices developed by federal judges on a case-by-case basis), http://www.uscourts.gov/sites/default/files/2016-04-civil-agenda_book_0.pdf; Senate Report on Multidistrict Litigation, S. Rep. No. 90-454, at 3-4 (1967) (finding informal coordination and aggregation that led to federal multidistrict litigation statute worked “exceptionally well”). To that end, the Administrative Conference of the United States recommends agencies considering aggregation “pilot[] programs to test the reliability of an approach to aggregation before implementing the program broadly.” Aggregation of Similar Claims in Agency Adjudication, 81 Fed. Reg. 40,260 (June 21, 2016) (Recommendation No. 3(c)). Following the Federal Circuit’s opinion authorizing the CAVC to hear veteran’s class actions, for example, the CAVC has begun to hear class actions on a case-by-case basis, as it begins formalizing its own rule to aggregate claims. Adam S. Zimmerman, *The Veteran’s Class*

Action, American Bar Ass’n: Administrative and Regulatory News, 10-11 (2018) (summarizing pending cases), *available at* https://www.americanbar.org/content/dam/aba/publications/administrative_regulatory_law_newsletters/arln-vol43-issue3-spring-2018.authcheckdam.pdf; *Monk v. Shulkin*, 2018 WL 507445, at *2 (Vet. App. Jan. 28, 2018) (observing that it was appropriate to borrow from the Federal Rules of Civil Procedure in cases pursuing class-wide relief).

Rule 12 of the Federal Maritime Commission’s Rules of Practice and Procedure expressly state that the Federal Rules of Civil Procedure “will be followed” to the extent that they are “consistent with sound administrative practice.” 46 C.F.R. § 502.12. As other courts and tribunals have found, aggregation in an appropriate case can help resolve pending claims and complement future rulemaking. The Federal Maritime Commission need not wait to aggregate cases on a case-by-case basis, even if it decides to someday adopt a formal aggregation rule.

C. Non-Article III courts may aggregate claims consistent with Due Process.

The discretion of federal agencies to craft their procedural rules is still governed by the procedural requirements of the Due Process Clause of the Fifth Amendment. Nevertheless, while the particular process due may vary from case to case, no court has suggested that due process limits *what kinds of adjudicators*—for example, Article III versus non-Article III courts—may use class actions or other tools to aggregate cases. The aggregation of common issues by both courts and administrative agencies has long withstood due process challenges.

The Supreme Court has long held that Constitutional requirements of due process are met when “notice is reasonably calculated ... to apprise interested parties of the pendency of an action and afford them an opportunity to present their objections.” *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314-315 (1950). Accordingly, class actions may bind absent

plaintiff class members, consistent with due process, so long as absent class members are provided with adequate representation, sufficient notice and an opportunity to either participate in the litigation or “opt out” of the class. *Phillips Petroleum Co. v. Shutts*, 472 U.S. 797, 812-13 (1985) (holding that Kansas’s procedure, “where a fully descriptive notice [was] sent first-class mail to each class member, with an explanation of the right to ‘opt out,’” satisfied the minimum requirements of due process). Class action rules were specifically designed to “achieve economies of time, effort, and expense, and promote ... uniformity of decision as to persons similarly situated, without sacrificing procedural fairness or bringing about other undesirable results.” *Amchem Prods. v. Windsor*, 521 U.S. 591, 615 (1997).

Although due process questions may vary from case to case, no court has suggested that due process imposes more limits on an agency’s authority to aggregate cases. Courts have long recognized that agencies may bind parties to common findings of law or fact without an individualized hearing consistent with due process. *Compare, e.g., Heckler v. Campbell*, 461 U.S. 458 (1983) (rejecting due process challenge because “the Secretary [must] determine an issue that is not unique to each claimant—the types and numbers of jobs that exist in the national economy”), and *Bi-Metallic Inv. Co. v. State Bd. of Equalization*, 239 U.S. 441 (1915) (rejecting due process challenge because “where a rule of conduct applies to more than a few people it is impracticable that everyone should have a direct voice in its adoption.”), with *Londoner v. Denver*, 210 U.S. 373 (1908) (for individual tax assessment “due process of law requires that at some stage of the proceedings... the taxpayer shall have an opportunity to be heard ... however informal.”).

In fact, courts have also approved the use of aggregation tools in the context of agency adjudications. For example, courts have consistently rejected claims that aggregating claims

through statistical sampling in Medicare and Medicaid programs violates due process, explaining that if a sample is representative and statistically significant, the risk of error to a provider is fairly low and the private interest “at stake is easily outweighed by the government interest in minimizing administrative burdens.” *Chaves County Home Health Servs. v. Sullivan*, 931 F.2d 914, 919-22 (D.C. Cir. 1991); *Ratanasen v. Cal. Dep’t of Health Servs.*, 11 F.3d 1467 (9th Cir. 1993); *Ill. Physicians Union v. Miller*, 675 F.2d 151, 157 (7th Cir. 1982) (“[I]n view of the enormous logistical problems of Medicaid enforcement, statistical sampling is the only feasible method available.”); *Bend v. Sebelius*, No. 09-3250, 2010 WL 4852230, at *4-6 (C.D. Cal. Nov. 19, 2010) (“The sample taken by the Carrier met the requirements of the Medicare program and when combined with the inherently low risk of error and the substantial government interest in statistical sampling, [plaintiff] has not suffered a procedural due process violation in this case.”); *Georgia ex rel. Dept. of Hum. Res. v. Califano*, 446 F. Supp. 404, 409-10 (N.D. Ga. 1977) (“[A]udit on an individual claim-by-claim basis of the many thousands of claims submitted each month by each state would be a practical impossibility as well as unnecessary.”).

III. AGGREGATION IS AN INDISPENSABLE TOOL FOR IMPROVING THE EFFICIENCY, CONSISTENCY, AND FAIRNESS OF ADJUDICATION.

Not only do non-Article III courts generally have the power to aggregate large groups of claims, but as illustrated above, many tribunals have relied on class action and other aggregate procedures to promote efficiency, consistency, and fairness. Aggregation can provide for the efficient pooling of information about common and recurring problems and for more consistent outcomes in similar cases than possible with case-by-case adjudications. Aggregation, moreover, is an important method to improve access to legal and expert assistance by parties with limited resources, so that individuals can pursue claims that otherwise would be difficult to do on an individual basis. *See, e.g., Butler v. Sears, Roebuck & Co.*, 727 F.3d 796, 801 (7th Cir.

2013) (Posner, J.) (“The *realistic* alternative to a class action is not 17 million individual suits, but zero individual suits, as only a lunatic or a fanatic sues for \$30” (emphasis in original) (citation omitted)), *cert. denied*, 134 S. Ct. 1277 (2014).

A. Aggregation can resolve group-wide harms more efficiently than can individual lawsuits.

Aggregation can resolve systematic problems and address allegations of group-wide harm more efficiently than piecemeal individual adjudication. Aggregation eliminates the duplicative expenditure of time and money associated with traditional one-on-one adjudications. *See In re Whirlpool Corp. Front-Loading Washer Products Liab. Litig.*, 722 F.3d 838, 859 (6th Cir. 2013) (citing *Amgen Inc. v. Connecticut Ret. Plans & Trust Funds*, 133 S. Ct. 1184, 1191 (2013)); William B. Rubenstein, *Newberg on Class Actions* § 1:9, at 27 (5th ed. 2015) (“Class actions are particularly efficient when many similarly situated individuals have claims sufficiently large that they would each pursue their own individual cases. In these situations, the courts are flooded with repetitive claims involving common issues.”).

The efficiencies afforded by aggregation can be especially helpful in large cases presenting complex factual questions and seeking similar relief. *See* Michael D. Sant’Ambrogio & Adam S. Zimmerman, *The Agency Class Action*, 112 Colum. L. Rev. 1992, 2010-12 (2012) (without aggregation procedures, large public benefits programs waste resources in “duplicative litigation, requiring frequent remands to address common factual errors, and hampering the efficient development and enforcement of law.”).¹⁵ For example, when over 5,000 parents claimed that a vaccine additive called thimerosal caused autism in children, the Vaccine Court

¹⁵ *See also* S. Rep. No. 111-265, at 35 (2009) (statement of Professor Michael P. Allen) (“[O]ne cannot avoid concluding that the absence of such authority to address multiple cases at once has an effect on system-wide timeliness of adjudication.”); American Bar Ass’n, *Section on Administrative Law and Regulatory Practice*, Report to the House of Delegates 9 (2003) (recommending the use of class actions by the CAVC to address system-wide problems in veteran’s cases).

used a national Autism Omnibus Proceeding to pool all the individual claims that raised the same highly contested scientific questions. *Cedillo v. Sec’y of Health & Human Servs.*, No. 98-916V, 2009 WL 331968, at *11 (Fed. Cl. Feb. 12, 2009), *aff’d*, 89 Fed. Cl. 158 (2009), *aff’d*, 617 F.3d 1328 (Fed. Cir. 2010). In the words of one Special Master, omnibus proceedings have “turned out to be a highly successful procedural device,” facilitating settlement of individual cases and allowing those cases that proceed to a hearing to be resolved “*far more efficiently* than if we had needed a full blown trial, with multiple expert witnesses, in each case.” *Id.* (emphasis in original).

Similarly, OMHA, which hears appeals from Medicare coverage determinations, expanded aggregation mechanisms to address a significant backlog that arose when the Medicare program stepped up efforts to recover excess billings. Under one initiative, hospitals, medical contractors and others may bundle hundreds of similar appeals at a time to facilitate settlement.¹⁶ Under another, a medical provider may appeal more than 250 similar claims together, try a small sample of those claims before an administrative law judge, and extrapolate the results to the entire universe of claims.¹⁷ Both programs have been so successful that medical providers are urging OMHA to expand opportunities to aggregate and settle large numbers of claims.¹⁸

¹⁶ See U.S. Dep’t Of Health & Human Servs., *Settlement Conference Facilitation*, HHS.GOV (last visited Oct. 20, 2015), <http://goo.gl/YSaUOU>.

¹⁷ See U.S. Dep’t of Health & Human Servs., *Statistical Sampling Initiative*, HHS.GOV (last visited Oct. 20, 2015), <http://goo.gl/y24gPF>.

¹⁸ See, e.g., Letter to Nancy J. Griswold, Chief Administrative Law Judge (ALJ), OMHA, from Medical Association of Georgia (Dec. 5, 2014) (calling for an expansion of OMHA’s Statistical Sampling Initiative), *available at* <http://goo.gl/U5NJIS>; Letter to Nancy J. Griswold, Chief Administrative Law Judge (ALJ), OMHA, from American Academy of Home Care Medicine (same), *available at* <https://goo.gl/OeqE9n>; Letter from Mark D. Polston, Partner, King & Spalding, to Nancy Griswold, Chief Administrative Law Judge, (ALJ), OMHA (Dec. 5, 2014) (calling for expansion of settlement conference initiative for a wider range of claims beyond Medicare Part B), *available at* <http://goo.gl/bC8G2t>; Letter from Robert Sowislo, Chair, Public Policy Committee, American Academy of Home Care Medicine, to Nancy Griswold, Chief

In sum, the ability to experiment with a range of aggregation tools in appropriate cases has enabled non-Article III tribunals to adjudicate cases involving group harms more efficiently than they could using individual, case-by-case adjudication.

B. Aggregation enables more consistent applications of law.

Aggregate procedures can provide more uniform and consistent application of the law. Aggregate proceedings and settlements seek uniformity and distributive fairness—to treat like parties in a like manner. Rubenstein, *Newberg on Class Actions* § 1:10, at 30 ([C]lass actions “reduce[] the risk of inconsistent adjudications. Individual processing leaves open the possibility that one court, or jury, will resolve a factual issue for the plaintiff while the next resolves a seemingly similar issue for the defendant.”).

For example, in the 1970s, the Civil Service Commission adopted class action rules to adjudicate discrimination inside the federal government, after courts had determined that such claims against governmental programs could not be brought in the absence of a class action. *Barrett v. U.S. Civil Service Comm’n*, 69 F.R.D. 544, 550 (D.D.C. 1974). The Equal Employment Opportunity Commission, which has succeeded the Civil Service Commission in resolving such disputes, deems the process to be critical in light of the volume of claims it processes each year, the potential for inefficient and inconsistent judgments, and the otherwise limited access to counsel. *See, e.g.*, 57 Fed. Reg. 12,634, 12,639 (Apr. 10, 1992) (describing inconsistent judgments that result in the absence of class actions).

The government itself has long achieved consistent results through classwide decisionmaking. *See, e.g.*, *Heckler v. Campbell*, 461 U.S. 458, 467 (1983) (social security grids); *United States v. Storer Broadcasting Co.*, 351 U.S. 192 (1956) (broadcast licenses).

Administrative Law Judge, (ALJ), OMHA (Dec. 5, 2014) (observing that the SCF program “provides a more expedient and in some ways straightforward process for [certain providers]”).

Consistent with due process, agencies may resolve whole classes of issues “that do not require case-by-case consideration” to avoid “continually relitigat[ing] issues that may be fairly and economically established in a single” proceeding. *Heckler*, 461 U.S. at 467. To that end, the Administrative Conference of the United States has recommended that agencies make greater use of class actions and declaratory orders in order to “pool information about common problems,” achieve “greater equality in outcomes” and provide “clarity and certainty.” Aggregation of Similar Claims in Agency Adjudication, 81 Fed. Reg. 40,260-61 (June 21, 2016); Declaratory Orders, 80 Fed. Reg. 78,163 (Dec. 16, 2015). In this way, “group procedures can form an integral part of public regulation and the adjudicatory process itself.” Michael Sant’Ambrogio & Adam S. Zimmerman, *Inside the Agency Class Action*, 126 Yale L.J. 1634, 1645 (2017).

Of course, aggregation is not a panacea, and decisions to employ it require thoughtful attention to the commonalities of the claimants and their evidence. But when used wisely, aggregate adjudication “may simultaneously improve uniformity, efficiency, and access to qualified counsel in a single proceeding.” Sant’Ambrogio & Zimmerman, *supra*, at 2024.

C. Aggregation can facilitate access to justice.

Aggregation can expand access to legal representation. American Law Institute, *Principles of the Law of Aggregate Litig.* § 1.04 (2010) (describing the central “object of aggregate proceedings” as “enabling claimants to voice their concerns and facilitating the rendition of further relief that protects the rights of affected persons”). As is vivid in the context of arbitration, single-file litigation has great costs, and aggregation permits pooling of resources. *Arbitration Study: Report to Congress*, Pursuant to Dodd-Frank Wall Street and Consumer Protection Act § 1028(a), Consumer Fin. Protection Bureau § 1, at 11-14 (2015) (concluding that class actions deliver cash relief to more consumers—especially those with small dollar claims—than individual arbitration), *available at* <http://goo.gl/NIarU8>. For example, between 2009 and

2014, AT&T, which prohibits its customers from using class arbitrations or class actions, *see AT&T Mobility LLC v. Concepcion*, 563 U.S. 333 (2011), had 85 to 120 million customers yearly. Fewer than thirty filed arbitrations in any of those five years. *See* Judith Resnik, *Diffusing Disputes: The Public in the Private of Arbitration, the Private in the Courts, and the Erasure of Rights*, 124 Yale L.J. 2804, 2812-13 (2015).

Aggregate procedures can also increase accountability and provide remedies for wide and diffuse harms that are too costly to be prosecuted through individual claims and appeals. *See Phillips Petroleum Co. v. Shutts*, 472 U.S. 797, 809 (1985) (“Class actions also may permit the plaintiffs to pool claims which would be uneconomical to litigate individually. For example, this lawsuit involves claims averaging about \$100 per plaintiff; most of the plaintiffs would have no realistic day in court if a class action were not available.”). Thus, aggregate procedures can serve an important democratic function, allowing groups of individuals collectively to petition and redress widespread harm. Judith Resnik, Dennis E. Curtis & Deborah R. Hensler, *Individuals Within the Aggregate: Relationships, Representation, and Fees*, 71 N.Y.U. L. Rev. 296, 382 (1996).

The EEOC’s class action device, for example, allows the pooling of information about employers’ policies and highlights patterns that may escape detection in individual proceedings. *See* 64 Fed. Reg. 37,644, 37,651 (July 12, 1999) (observing that “class actions ... are an essential mechanism for attacking broad patterns of workplace discrimination and providing relief to victims of discriminatory policies or systemic practices”). In some cases, the scale and visibility of an EEOC class action itself attracts the attention of government agencies, leading to workplace reforms. For example, after an EEOC class of disabled applicants challenged the State Department’s “world-wide” availability requirement for foreign service workers—a policy

that rejected candidates for promotion unless they could work without accommodation—the state department was alerted to a systematic problem in its hiring practices.¹⁹

Additionally, the Vaccine Court's omnibus proceedings allow all parties alleging vaccine-related injury to benefit from the record developed in test cases and general causation hearings by the most qualified experts and experienced legal counsel. *Cedillo*, 2009 WL 331968 at *8 (noting how a select group of petitioners' counsel is charged with obtaining and presenting evidence in the omnibus proceedings). In one of the Vaccine Court's first omnibus proceedings, the parties pooled common scientific evidence on the issue of whether a rubella vaccine caused chronic arthritis. As a result, the Vaccine Court raised the profile of an issue that, up to that time, had not been in focus for the Department of Health and Human Services as well as Congress. *Ahern v. Sec'y of the Dep't of Health and Human Servs.*, No. 90-1435V, 1993 WL 179430 at *3 (Fed. Cl. Spec. Mstr. Jan. 11, 1993). Shortly after the decision, the Vaccine Injury Table was administratively modified, consistent with the decision, to include chronic arthritis as an injury generally associated with the rubella vaccine. *See* 60 Fed. Reg. 7678 (1995), *revised* 62 Fed. Reg. 7685, 7688 (1997).

As these examples illustrate, aggregation procedures are one means of expanding access to non-Article III courts and tribunals and improving the information provided to them.

CONCLUSION

A host of non-Article III tribunals have interpreted their authorizing statutes, with language akin to that of the Federal Maritime Commission, to include the authority to consolidate claims, to certify class actions, and to use other forms of aggregate procedures in

¹⁹ Press Release, *U.S. Equal Employment Opportunity Commission Affirms Class Action to Open State Department to Disabled Foreign Service Officers*, MarketWatch, June 14, 2014, available at <http://goo.gl/GXdHOK>.

appropriate cases. For those courts, aggregation has proved to be an indispensable tool for promoting efficiency, consistency, and access to adjudication. Statutes authorizing non-Article III courts to make rules can and should be read to include the authority to create aggregate procedures so as to fulfill statutory mandates to decide disputes.

Dated: August 7, 2018

Respectfully Submitted,

By: /s/ Michael Sant'Ambrogio

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th day of August 2018, a true and correct copy of the foregoing BRIEF OF PROFESSORS SANT'AMBROGIO AND ZIMMERMAN AS AMICI CURIAE IN SUPPORT OF COMPLAINANTS was filed electronically with the Secretary of the Federal Maritime Commission and via first-class mail, and electronic copies thereof were sent to all lead/liaison counsel in the Dockets of Nos. 16-01, 16-07, 16-10, and 16-11.

/s/ Michael Sant' Ambrogio

EXHIBIT 2

FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01, 16-07, 16-10, and 16-11

IN RE: VEHICLE CARRIER SERVICES

**[PROPOSED] ORDER GRANTING MOTION OF
PROFESSORS SANT'AMBROGIO AND ZIMMERMAN
TO FILE AN AMICUS BRIEF**

The Commission has reviewed the motion of Professors Sant'Ambrogio and Zimmerman to file an amicus brief and hereby GRANTS the motion.

SO ORDERED:

DATED this __ day of _____, _____.